

PCU317211 RENFRO, MARGIE M vs. PRIME TOWING & TRANSPORT, INC, et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-25

Motion: Plaintiff's Motion to Compel Further Responses to

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Re: RENFRO, MARGIE M vs. PRIME TOWING & TRANSPORT, INC, et al

Case No.: PCU317211

Date: August 25, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Motion to Compel Further Responses to

Tentative Ruling: To grant the motion as to Nos. 16, 17, 18, 21, 23, and 24; To deny the motion as to Nos. 5 through 15, 19, 20, 22, 25; to deny the request for sanctions.

Background Facts

Following multiple demurrers and amended complaints, the Court notes a single cause of action for negligence under Vehicle Code section 22651.07 remains at issue in this matter against Defendants Prime Towing and Alvin Delatorre.

Under this section, Plaintiff alleges that Defendants failed to provide a copy of the towing and storage fees and access notice to any owner or operator of a stored vehicle (Vehicle Code section 22651.07(a)(2)), failed to provide an itemized invoice to the vehicle owner or their agent (Vehicle Code section 22651.07(b)), failed to permit a vehicle owner or their agent to receive personal property, inspect the vehicle without paying a fee, and request a copy of the fee and access notice (Vehicle Code section 22651.07(c)(1), (3), (4)).

The Court's ruling on demurrer noted:

"...Exhibit 8 attached to the Second Amended Complaint and incorporated herein, indicates an issue date of June 5, 2024 as to the certificate of title. (SAC – Ex. 8)

Thus, the allegations as to the visit in May 2024 and a second visit, at an unknown time, would not, given the lack of registered ownership in Plaintiff's name, violate this statute. Plaintiff alleges a third encounter in March 2025 wherein Plaintiff's agent was permitted to retrieve personal property and inspect the Trailer. (TAC 18:21-25.) However, the operative amended complaint alleges further that in March 2025, Plaintiff's representative "requested the bill under this code and was denied." At that point in time, as noted above, the certificate of title reflected ownership by Plaintiff."

As such, the March 2025 encounter serves as the basis of the alleged violation of the statute.

Facts as to Motion to Compel

On May 27, 2026, Plaintiff indicates service of Special Interrogatories, Set One, consisting of 25 interrogatories, as to Defendant Delatorre.

On or about June 23, 2026, Defendant provided a verified response to this discovery.

Plaintiff attaches an email sent on June 24, 2026 stating "Can you please ask your client to answer the questions; I will prepare a formal meet and confer with the reasons answers need to be given; but this is just a simple request to have your client answer the questions" and thereafter alleging Defendant acted inappropriately with the responding officer.

Defendant's counsel responded that "I will not ask the client to respond to questions that are irrelevant to the issues before the Court or questions that are solely intended to annoy or harass" and that "The email below is inappropriate and appears to be an attempt to use unrelated matters as leverage in this action. Communications of this nature are not acceptable and maybe presented to the Court as evidence of intimidation tactics

Plaintiff thereafter provides further emails which identify issues with Special Interrogatory Nos. 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 24, and 25. Plaintiff notes the responses to these interrogatories contained objections that the interrogatories were vague, ambiguous, "not relevant to any issue before the Court and will not likely lead to the discovery of admissible evidence" and "Given the irrelevant nature of the question, Responding Party will not be responding to this Special Interrogatory."

On July 21, 2026, Plaintiff filed this motion to compel further responses and for sanctions. On August 12, 2026, Defendant filed an opposition to this motion.

Authority and Analysis

A party may move to compel further responses to interrogatories if the propounding party deems that (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) The moving party must demonstrate a "reasonable and good faith attempt" at an informal resolution of each issue presented. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).)

As to the vague and ambiguous objection, these are considered nuisance objections. (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901.) The interrogatories are not so vague that Defendant cannot understand them and provide a substantive response. Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783 notes even if a discovery request is somewhat ambiguous, the appropriate response is to provide a substantive response when "the nature of the information sought is

apparent.”

As to the relevance and not likely to lead to discovery of admissible, Code of Civil Procedure section 2017.010, “Discovery may relate to the claim or defense of the party seeking discovery of any other party to the action.” (Code Civ. Proc. § 2017.010.) Further, “[A]ny party may obtain] discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.010.)

“[F]or discovery purposes, information is relevant to the ‘subject matter’ of an action if the information might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.” (Jessen v. Hartford Casualty Ins. Co. (2003) 111] Cal.App.4th 698, 711-12.) “[I]nformation, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation.] These rules are applied liberally in favor of discovery [citation], and contrary to popular belief, fishing expeditions are permissible in some cases.” (Gonzalez v. Superior Court (1995) 33 Cal-App.4th 1539, 1546.)

With those principles in mind, the Court turns to the individual questions.

No. 5

Special Interrogatory No. 5 involving the size of the yard does not appear to have any relevance to the subject matter of this action, which is currently limited to the alleged request for a bill of storage and towing fees.

The Court, therefore, will not order a further response to No. 5

Nos. 6 through 15, 19

These interrogatories seek information as to break ins, encounters with unhoused persons and/or prostitutes, which do not appear to have any relevance to the subject matter of this action as noted above.

The Court, therefore, will not order a further response to Nos. 6 through 15.

Nos. 16 through 18, 21

The Court considers these to be contention interrogatories that are relevant to the issue of the presentation of a bill of towing and storage fees to an owner of a vehicle. Code of Civil Procedure section 2030.010(b) authorizes such discovery expressly:

“An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.” (Code of Civil Procedure, § 2030.010(b).)

The Court, therefore, will order a further response to Nos. 16, 17, 18 and 21.

No. 20

The complaint does not allege activity regarding any May 2025 encounter and the Court, therefore, does not find this interrogatory relevant to the subject matter of this action as noted above.

The Court, therefore, will not order a further response to No. 20.

Nos. 22, 25

The Court does not consider offers made in this case as to settlement proper subjects of interrogatories. The Court, therefore, will not order a further response to Nos. 22 and 25.

No. 23 and 24

As to these interrogatories regarding the bill and pink slip, the Court finds a sufficient relevance to the subject matter of this case.

The Court, therefore, will order a further response to Nos. 23 and 24.

Sanctions

The Court denies the request for sanctions based on the mixed results of this motion. (*Mattco Valley Forge v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437.)

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.